

CV-21-005754 GAVERT, JAMES vs CF MODESTO LLC - Defendant, Andreh Saralou M.D.'s Motion to Strike Portions of Plaintiffs' Second Amended Complaint - The Court, on its own motion, CONTINUES the hearing on Defendant the Estate of Michael Brodie's Motion to Strike to September 23, 2026, at 8:30 a.m. in Department 22.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: The Court notes that Defendant Andreh Saralou, M.D. has filed both a demurrer and a motion to strike directed to the Second Amended Complaint, which are presently calendared for hearing on September 23, 2026. The motions raise overlapping and interrelated issues concerning the sufficiency of the allegations added in the Second Amended Complaint, including Plaintiffs' allegations regarding care and custody, the viability of the elder abuse cause of action, and the availability of enhanced remedies under Welfare and Institutions Code section 15657. Resolution of the demurrer may affect, narrow, or eliminate some of the issues presented by the Estate's motion to strike. Consideration of the motions together will allow the Court to evaluate the operative pleading as a whole, avoid piecemeal adjudication of related pleading issues, conserve judicial resources, and reduce the possibility of inconsistent rulings regarding the sufficiency of the allegations contained in the Second Amended Complaint. Accordingly, in the interest of judicial economy and efficient case management, the hearing on Defendant The Estate of Michael Brodie's Motion to Strike is CONTINUED to September 23, 2026, at 8:30 a.m. in Department 22, to be heard concurrently with Defendant Andreh Saralou, M.D.'s demurrer and motion to strike. No further briefing shall be required unless otherwise ordered by the Court.

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The Court notes that Defendant Andreh Saralou, M.D. has filed both a demurrer and a motion to strike directed to the Second Amended Complaint, which are presently calendared for hearing on September 23, 2026. The motions raise overlapping and interrelated issues concerning the sufficiency of the allegations added in the Second Amended Complaint, including Plaintiffs' allegations regarding care and custody, the viability of the elder abuse cause of action, and the availability of enhanced remedies under Welfare and Institutions Code section 15657.

Resolution of the demurrer may affect, narrow, or eliminate some of the issues presented by the Estate's motion to strike. Consideration of the motions together will allow the Court to evaluate the operative pleading as a whole, avoid piecemeal adjudication of related pleading issues, conserve judicial resources, and reduce the possibility of inconsistent rulings regarding the sufficiency of the allegations contained in the Second Amended Complaint.

Accordingly, in the interest of judicial economy and efficient case management, the hearing on Defendant The Estate of Michael Brodie's Motion to Strike is CONTINUED to September 23, 2026, at 8:30 a.m. in Department 22, to be heard concurrently with Defendant Andreh Saralou, M.D.'s demurrer and motion to strike.

No further briefing shall be required unless otherwise ordered by the Court.